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Tentative Ruling

Re: ***Americreditfinancial Services, Inc. v. Ibrahim***
Superior Court Case No. 25CECG04247

Hearing Date: July 16, 2026 (Dept. 403)

Motion: Application for Writ of Possession

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on July 15, 2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Iler v. Fresno Community Hospital and Medical Center***
Superior Court Case No. 23CECG03097

Hearing Date: July 16, 2026 (Dept. 403)

Motion: By Defendant Fresno Community Hospital and Medical Center for Summary Judgment or, in the Alternative, Summary Adjudication

Tentative Ruling:

The parties are directed to appear. The court intends to continue hearing on the motion for summary judgment pursuant to Code of Civil Procedure section 437c, subdivision (h). The parties are directed to meet and confer as to a date for continued hearing on defendant Fresno Community Hospital and Medical Center's motion for summary judgment. The parties may further meet and confer as to any stipulations to vacate the present set trial date of August 17, 2026.

Explanation:

Defendant Fresno Community Hospital and Medical Center ("Defendant") moves for summary judgment of the Third Amended Complaint ("TAC") by plaintiff Henry Justin Iler ("Plaintiff"). Following successful challenges to the pleadings, at issue are two remaining causes of action, for medical negligence, and intentional infliction of emotional distress. Defendant now seeks summary judgment of the two causes of action based on the declarations of medical experts, Barry M. Simon, M.D. and Edward J. Yun, M.D.

"The standard of care in a medical malpractice case requires that physicians exercise in diagnosis and treatment that reasonable degree of skill, knowledge and care ordinarily possessed and exercised by members of the medical profession under similar circumstances. ' "The standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony, unless the conduct required by the particular circumstances is within the common knowledge of the layman."'" (Munro v. Regents of University of California (1989) 215 Cal.App.3d 977, 983-984, internal citations omitted.)

Normally, the question of whether a medical professional's care and treatment of a patient fell within the standard of care or caused the plaintiff's injuries is a matter that can only be established through expert testimony. (Landeros v. Flood (1976) 17 Cal.3d 399, 410.) "California courts have incorporated the expert evidence requirement into their standard for summary judgment in medical malpractice cases. When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment

unless the plaintiff comes forward with conflicting expert evidence." (*Hutchinson v. United States* (9th Cir. 1988) 838 F.2d 390, 392.)

Here, Defendant's expert submits that Defendant's care and treatment of Plaintiff did not fall below the standard of care or cause his injuries. (Defendant's Statement of Undisputed Material Fact ["UMF"], No. 5.) Dr. Simon, an emergency medicine specialist opined that Defendant's nursing and non-physician staff met applicable standards of care. (UMF No. 6.) Dr. Yun cumulatively opines as to the same. (UMF No. 7.) Dr. Simon further opined that the allegations that form the basis of the claims of the TAC are not duties owed by Defendant's nursing and non-physician staff. (UMF No. 8.) Defendant further submits expert opinion that Defendant's actions or failure to act did not cause any of the alleged harms to Plaintiff. (UMF Nos. 14, 16.) Finally, Defendant submits that any physicians related to Plaintiff's care were not agents of Defendant. (UMF No. 22.) Accordingly, Defendant meets its burden to show no triable issues as to the allegations of the claim for medical negligence.

The burden shifts to Plaintiff to come forward with conflicting expert evidence. Plaintiff opposes solely on the grounds of Code of Civil Procedure section 437c, subdivision (h), and seeks a continuance to conduct discovery thereon. There is no dispute that Plaintiff bears the burden to identify the facts essential to opposing the motion; the reason to believe such facts may exist; and the reasons why additional time is necessary to obtain these facts. (*E.g.*, *Frazee v. Seely* (2002) 95 Cal.App.4th 627, 633.)

Plaintiff submits that he only recently obtained counsel on June 3, 2026, which was roughly three weeks prior to the date the opposition to this motion was due. (Covolo Decl., ¶ 2.) Counsel submits that Plaintiff has not yet been able to retain an expert to rebut the opinions of Dr. Simon and Dr. Yun. (*Id.*, ¶ 5.) Counsel submits that efforts have been made since his retention. (*Ibid.*) Plaintiff identifies as essential facts, whether nursing staff's insistence to obtain consent to place a Foley catheter met applicable standards of care; whether genital exposure comports with applicable standards of patient dignity and privacy; whether Plaintiff's mental condition was adequately managed; and whether Defendant's conduct contributed to Plaintiff's alleged damages. (*Ibid.*) Plaintiff submits that discovery is yet ongoing, despite Plaintiff's prior attempts to obtain information in pro per. (*Id.*, ¶¶ 6, 7.)

On reply, Defendant submits that Plaintiff's efforts, including his time in pro per, reflect undue delay. While Defendant submits that no discovery is currently pending, Defendant does not contest that discovery has occurred during the pendency of this motion.

Based on the above, the court finds good cause to continue the motion pursuant to Code of Civil Procedure section 437c, subdivision (h). However, trial remains set for August 17, 2026. Plaintiff appears to seek additional time beyond the present set trial date. (Covolo Decl., ¶ 9.) While Defendant opposes the continuance of the motion and trial, presently before the court is only the motion for summary judgment or, in the alternative, summary adjudication. Accordingly, the parties are directed to meet and confer as to continuance of the present motion and supplemental briefing schedule, and the possibility of a stipulation to continue trial, which the court is willing to entertain. All

issues regarding summary judgment or adjudication are reserved. All objections presently lodged are preserved.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 15, 2026.
(Judge's initials) (Date)